

23VECV05342 23VECV05342

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 23VECV05342 Hearing Date: September 1, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Emeka Victor Okwudili

Peter's Motion for Discretionary Stay of Vexatious Litigant Prefiling Order

Pending Appeal is denied.

Plaintiff's Motion for

Reconsideration of Order Declaring Plaintiff a Vexatious Litigant set for hearing on September 16, 2026 is taken off calendar.

Analysis:

On December 4, 2023, Plaintiff Emeka Victor Okwudili

Peter ("Plaintiff"), in propria persona, filed the

Complaint in this action against Defendants Cooperative Regions of

Organic Producer Pools ("Defendant CROPP"), erroneously sued as Cooperative

Regions of Organic Producer Pools d/b/a Organic Valley and CROPP Cooperative, The

Kroger Co. ("Defendant Kroger"), and Ralphs Grocery Company dba Ralphs ("Defendant Ralphs"). The Complaint alleged causes of

action for (1) general

negligence; (2) negligence per se; (3) strict liability; and (4) negligent

hiring, retention, and control of employees. Specifically, Plaintiff alleged

that he became very ill after drinking spoiled milk purchased from Defendants.

The action was originally assigned to the Unlimited Civil Court.

On January 2, 2024, Ralphs filed its Answer to Plaintiff's Complaint.

On January 12, 2024, Defendant CROPP filed a Demurrer to the Complaint and

Motion to Strike Portions of the Complaint. On March 29, 2024, Defendant CROPP

filed a Cross-Complaint against Defendants Kroger and Ralphs, to which Defendant Ralphs filed its Answer on April 23, 2024. The Court sustained Defendant CROPP's Demurrer to the Complaint and ordered Plaintiff to file a First Amended Complaint within 30 days. (Minute Order, 05/07/24.)

On May 30, 2024, the Court granted Defendant Ralphs' Motion to Reclassify the action to a Limited Civil Court. (Minute Order, 05/30/24.) Following Plaintiff's failure to file a First Amended Complaint, the Court granted Defendant CROPP's Motion re: For Judgment of Dismissal. (Minute Order, 08/01/24.) Trial in this action was initially called on September 12, 2024 and continued to October 15, 2024. (Minute Order, 09/12/24.) The Court also set an Order to Show Cause Re: Why Plaintiff Should Not Pay \$500 Sanctions for Failure to Meet and Confer/File Trial Documents. (Ibid.)

After the first Order to Show Cause was discharged, the Court set a second Order to Show Cause Re: Sanctions of \$100.00 for Plaintiff for Failure to Appear for Trial on June 11, 2025. (Minute Order, 06/11/25.) The action came for trial on July 18, 2025 and the jury came back with a defense verdict on July 21, 2025. (Minute Orders, 07/18/25 and 07/21/25.) The Court entered an order of dismissal on August 14, 2025.

Plaintiff filed a Motion for New Trial, which the Court denied on October 1, 2025. (Minute Order, 10/01/25.) Plaintiff then filed a Motion for Reconsideration of Order Denying Motion for New Trial, which the Court denied on October 28, 2025. (Ruling on Motion, 10/28/25.) Plaintiff also filed a Notice of Appeal on October 16, 2025. Plaintiff filed a Motion for Sanctions for Bad Faith Conduct on April 22, 2026. On June 3, 2026, the Court partially granted Defendant Ralphs' Motion to Deem Plaintiff a Vexatious Litigant and entered a pre-filing order against Plaintiff. (Minute Order, 06/03/26.)

Plaintiff filed the instant Motion for Discretionary Stay of Vexatious Litigant Prefiling Order Pending Appeal on June 11, 2026. Plaintiff also filed a Motion for Reconsideration of Order Declaring Plaintiff a Vexatious Litigant on June 15, 2026, which is set for hearing on September 16, 2026. The Court denied the Sanctions Motion on July 28, 2026. (Minute Order, 07/28/26.)

On July 8, 2026, Plaintiff filed a Notice of Appeal with respect to the June 3,

2026 order declaring Plaintiff a vexatious litigant. Defendant Ralphs' opposition to the instant Motion was filed on August 13, 2026.

Discussion

As an initial matter, the Court notes that Defendant Ralphs' opposition to the instant Motion was served on Plaintiff by only electronic mail. (Opp., p. 53.) Unrepresented parties such as Plaintiff must affirmatively consent to electronic service. (Cal. Rules of Court, rule 2.251(c)(3)(B).) Papers in this action have been previously served on Plaintiff by mail. (See Opp. to Mot., 7/15/26, p. 11.) The Court is not aware of any record demonstrating that Plaintiff has agreed to service by email. Service of the opposition upon Plaintiff by electronic mail, therefore, does not meet the statutory requirements for notice. Failure to give notice of the papers and hearing date is a violation of due process and of the statutory notice requirements. (Code Civ. Proc., § 1005; Jones v. Otero (1984) 156 Cal.App.3d 754, 757.) Accordingly, the Court will not consider the opposition in its ruling on the instant Motion.

Plaintiff's Motion to Stay is brought pursuant to Code of Civil Procedure section 918, which states in relevant part:

(a) Subject to subdivision (b), the trial court may stay the enforcement of any judgment or order.

(b) If the enforcement of the judgment or order would be stayed on appeal only by the giving of an undertaking, a trial court shall not have power, without the consent of the adverse party, to stay the enforcement thereof pursuant to this section for a period which extends for more than 10 days beyond the last date on which a notice of appeal could be filed.

(Code Civ. Proc., § 918, subds.

(a), (b).) Plaintiff argues that "[i]n balancing the harms, the Court must look to whether a stay will financially or legally prejudice the moving party," (Motion, p. 3:21-22) and argues that Defendant Ralphs will suffer no financial prejudice if the prefiling order is stayed, and also argues that his appeal contesting the designation is brought in good faith.

Before addressing the merits of the request, the Court clarifies the scope of the pre-filing order. Plaintiff characterizes the pre-filing order as requiring him to “seek leave from the Presiding Judge for every single procedural step required to advance this case.” (Mot., p. 4.) That is not accurate. The pre-filing order does not require Plaintiff to seek leave to file documents in this case, or any case pending at the time it was entered. It requires Presiding Judge permission only before filing additional lawsuits as a self-represented plaintiff. (See Code Civ. Proc., § 391.7.) As the Court explained in *Shalant v. Girardi* (2011) 51 Cal. 4th 1164:

[O]ur vexatious litigant statutes provide courts and nonvexatious litigants with two distinct and complementary sets of remedies. In pending litigation, a defendant may have the plaintiff declared a vexatious litigant and, if the plaintiff has no reasonable probability of prevailing, ordered to furnish security. If the plaintiff fails to furnish the security, the action will be dismissed. (§§ 391.1–391.6.) In addition, a potential defendant may prevent the vexatious litigant plaintiff from filing any new litigation in propria persona by obtaining a pre-filing order and, if any new litigation is inadvertently permitted to be filed in propria persona without the presiding judge's permission, may then obtain its dismissal. (§ 391.7.)

(Id. at 1171 (bold and underlining added).) Here, only the latter remedy applies. The pre-filing order entered in this case on June 3, 2026 only operates to prevent Plaintiff “from filing any new litigation in propria persona” without “obtaining a pre-filing order.” (Id.) The Court notes that its order of June 3, 2026 may have created a contrary impression where it stated: “Self-represented Plaintiff must obtain an order from the Presiding Judge of Los Angeles Superior Court under CCP § 391.7(c) to proceed with this case.” (Minute Order, 06/03/2026 (underlining added).) To be clear, Plaintiff does not need to obtain Presiding Judge permission to file documents in this case.

This mis-impression appears to be the basis of Plaintiff's request for stay. (See Mot., p.4; Peter Decl., ¶5.)

The Motion does not refer to any intention to file new, separate litigation in propria persona as a justification for the requested stay. Accordingly, with the scope of the pre-filing order clarified, the Motion presents no basis

to stay the pre-filing order pending determination of Plaintiff's appeal. The Court denies the Motion.

The Court notes that Plaintiff has pending a Motion for Reconsideration of the Court's Order declaring Plaintiff vexatious, which is set for hearing in approximately two weeks, on September 16, 2026. The Court lacks jurisdiction to hear that motion or to reconsider its Order deeming Plaintiff vexatious because Plaintiff has filed a Notice of Appeal from the Order. Filing an appeal of the Order deprives this Court of jurisdiction to reconsider the Order while the appeal is pending. (See Appeal-Notice of Appeal, 07/08/2026; see also Code Civ. Proc., § 916(a) ("the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby").) Accordingly, the Court takes off calendar the Motion to Reconsider.

Conclusion

Plaintiff Emeka Victor Okwudili
Peter's Motion for Discretionary Stay of Vexatious Litigant Prefiling Order
Pending Appeal is denied.

Plaintiff's Motion for
Reconsideration of Order Declaring Plaintiff a Vexatious Litigant set for
hearing on September 16, 2026 is taken off calendar.

Judicial Assistant to give notice.